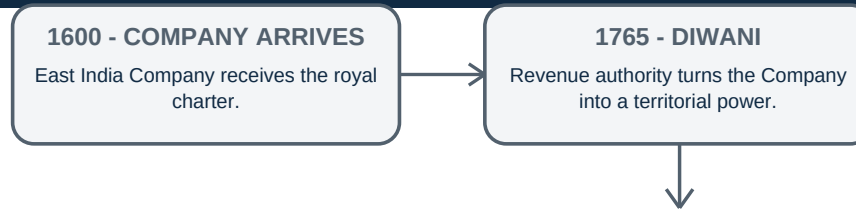
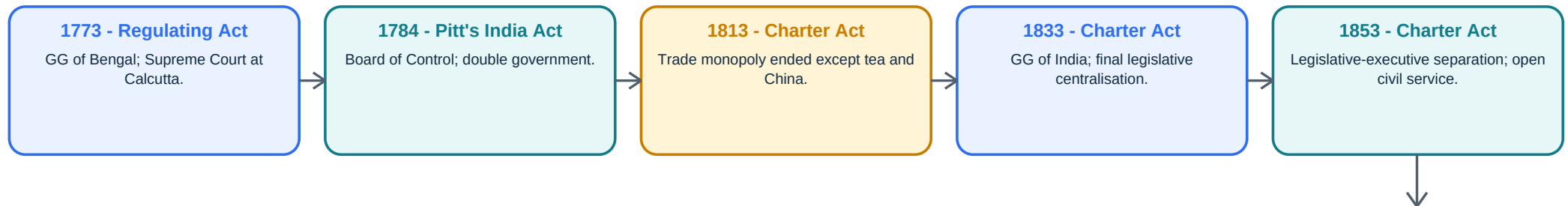


POLITY - HISTORICAL BACKGROUND OF THE CONSTITUTION

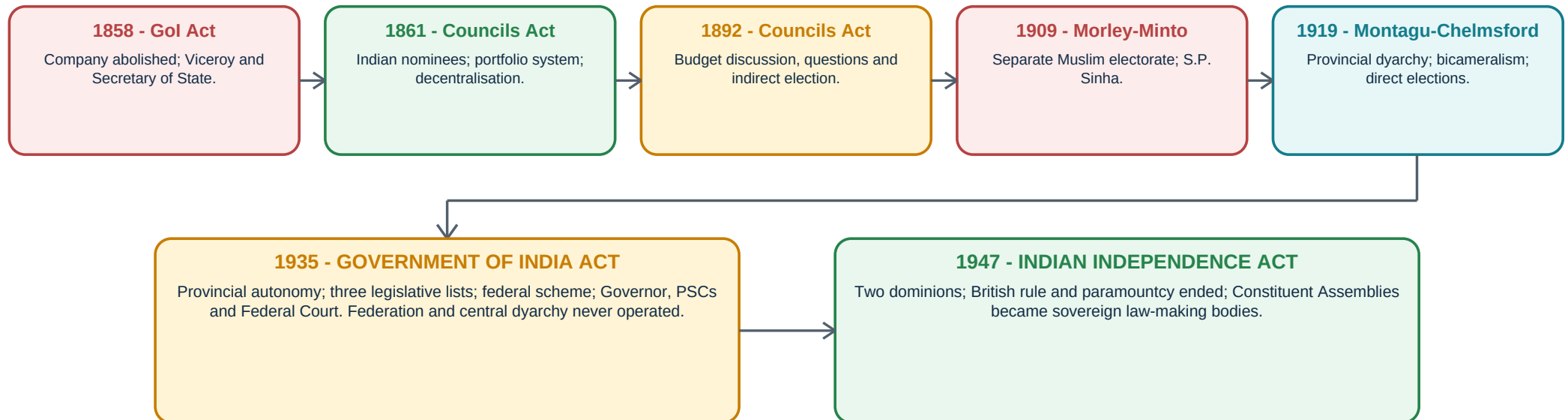
Company Rule -> Crown Rule -> Responsible Government -> Federal Framework -> Independence



COMPANY RULE: REGULATION AND CENTRALISATION (1773-1858)



CROWN RULE: REPRESENTATION, DEVOLUTION AND COMMUNAL ELECTORATES (1858-1947)



COMPANY RULE (1773-1858) - ACT-WISE DETAIL

Regulation -> political control -> end of monopoly -> centralisation -> legislative and civil-service reform

1773 - REGULATING ACT

Created Governor-General of Bengal with a four-member council; first was Warren Hastings. Subordinated Bombay and Madras. Established Supreme Court at Calcutta in 1774. Restricted private trade and gifts. Required Company reporting.

1781 - ACT OF SETTLEMENT

Limited Supreme Court jurisdiction over official acts of the Governor-General, council and Company servants. Excluded revenue matters. Applied personal laws to Hindu and Muslim inhabitants. Appeals moved through Governor-General-in-Council.

1784 - PITT'S INDIA ACT

Separated commercial and political functions. Court of Directors handled commerce; Board of Control supervised political affairs. Created the system of double government. Called Company territories British possessions in India. Gave Britain supreme control.

1786 - CORNWALLIS ACT

Allowed the Governor-General to override his council in special cases. Permitted the same person to serve as Governor-General and Commander-in-Chief. Strengthened the executive authority of Lord Cornwallis.

1793 - CHARTER ACT

Extended the Company's trade monopoly for twenty years. Extended the Governor-General's override power to future Governors-General and Governors. Expenses of the Board of Control were charged to Indian revenues.

1813 - CHARTER ACT

Ended Company trade monopoly except tea and trade with China. Asserted Crown sovereignty over Company territories. Permitted Christian missionaries. Provided funds for Western education. Allowed local governments to impose taxes.

1833 - CHARTER ACT

Made the Governor-General of Bengal the Governor-General of India; first was William Bentinck. Ended Company commercial activity. Centralised all legislative power. Laws became Acts. Territories were held in trust for the Crown. Proposed open civil-service competition.

1853 - CHARTER ACT

Separated legislative and executive functions of the Governor-General's council. Added six legislative members, creating a mini-Parliament. Introduced open civil-service competition and the Macaulay Committee. Added local representation. Set no fixed renewal term.

COMPANY-RULE CONVERSION SPINE

1773 began parliamentary regulation. 1784 created British political supervision. 1813 weakened commercial monopoly and asserted Crown sovereignty. 1833 completed legislative centralisation and made the Company administrative. 1853 differentiated legislature from executive and established merit-based civil-service recruitment.

CROWN RULE (1858-1932) - ACT-WISE DETAIL

Crown transfer -> representative institutions -> oversight -> communal electorates -> dyarchy and direct elections

1858 - GOVERNMENT OF INDIA ACT

Abolished the East India Company and transferred rule to the Crown. Governor-General became Viceroy; first was Lord Canning. Ended double government. Created Secretary of State for India with a fifteen-member Council of India.

1861 - INDIAN COUNCILS ACT

Began Indian association through nominated non-official members. Restored legislative powers to Bombay and Madras. Recognised the portfolio system. Permitted new provincial councils. Authorised six-month ordinances by the Viceroy.

1892 - INDIAN COUNCILS ACT

Enlarged legislative councils while retaining official majorities. Allowed budget discussion and questions to the executive. Introduced limited indirect election through nomination on recommendation, while avoiding the word election.

1909 - MORLEY-MINTO REFORMS

Enlarged central and provincial councils. Retained official majority at the Centre. Introduced separate Muslim electorates and legalised communal representation. S.P. Sinha became the first Indian on the Viceroy's Executive Council.

1919 - MONTAGU-CHELMSFORD REFORMS

Separated central and provincial subjects. Introduced provincial dyarchy: transferred subjects under ministers and reserved subjects under the Governor's executive council. Introduced bicameralism and direct elections at the Centre. Extended communal electorates. Provided for a Public Service Commission and separated provincial budgets.

1927 - SIMON COMMISSION

Seven all-British members; widely boycotted. Recommended abolition of provincial dyarchy, responsible government in provinces and federation of British India with princely states. Led to Round Table Conferences, White Paper and the 1935 Act.

1932 - COMMUNAL AWARD

Ramsay MacDonald extended separate electorates to depressed classes. Gandhi's fast led to the Poona Pact: reserved seats for depressed classes within a joint Hindu electorate rather than a separate electorate.

CROWN-RULE CONVERSION SPINE

1858 created central Crown control. 1861 began nominated representation and administrative portfolios. 1892 introduced legislative oversight. 1909 constitutionalised communal electorates. 1919 attempted responsible government through dyarchy and direct elections. Simon Commission and the Round Table process produced the comprehensive 1935 framework.

1935 AND 1947 - DECISIVE CONSTITUTIONAL TRANSITION

The largest colonial constitutional framework and the legal termination of British sovereignty

1935: ALL-INDIA FEDERATION

Proposed a federation of British Indian provinces and princely states. Powers were divided into Federal, Provincial and Concurrent Lists. The federation never commenced because the required princely states did not accede.

1935: PROVINCIAL AUTONOMY

Abolished provincial dyarchy and expanded responsible government under ministers, subject to gubernatorial safeguards. Provincial governments operated from 1937 to 1939. Dyarchy was instead proposed at the Centre but never commenced.

1935: POWERS AND SAFEGUARDS

Federal, Provincial and Concurrent Lists contained 59, 54 and 36 subjects. Residuary powers belonged to the Governor-General. Defence, external affairs, ecclesiastical affairs and tribal areas were reserved under his control.

1935: LEGISLATURE AND FRANCHISE

Introduced bicameralism in six provinces. Continued and widened separate electorates. Franchise reached only about ten per cent. The federal legislature remained constrained by the Governor-General's special powers.

1935: INSTITUTIONAL LEGACY

Provided for the Federal Court, federal and provincial public service commissions and the Reserve Bank of India framework; separated Burma and abolished the Council of India. It became the single largest source of the Constitution.

1947: SOVEREIGN DOMINIONS

Created India and Pakistan from 15 August 1947. Ended British rule and abolished the Viceroy and Secretary of State arrangements. Each dominion received a Governor-General functioning as a constitutional head.

1947: CONSTITUENT POWER

Constituent Assemblies could frame any constitution, legislate for their dominions and repeal British statutes. Government continued temporarily under the 1935 Act until new constitutions came into force.

1947: PARAMOUNTCY AND INTEGRATION

British paramountcy over princely states lapsed rather than transferring automatically to India. States could initially choose accession, making political integration essential to the creation of the Indian Union.

HISTORICAL BACKGROUND - CONCEPT AND EXAM MAP

How colonial statutes shaped, and also warned, the Constitution of 1950

A. CENTRALISATION STRAND

1773 subordinated Bombay and Madras to Bengal. 1833 created the Governor-General of India and all-India legislative authority. 1858 placed administration under the Crown. This formed the strong central administrative spine.

B. REPRESENTATIVE STRAND

1861 began Indian nomination and recognised portfolios. 1892 allowed budget discussion and questions. 1919 introduced direct elections and bicameralism. 1935 provided provincial autonomy.

C. COMMUNAL REPRESENTATION

1909 introduced separate Muslim electorates. 1919 extended them. The 1932 Communal Award included depressed classes; the Poona Pact retained reserved seats within a joint electorate. The Constitution rejected separate electorates.

D. 1935 ACT - LARGEST SOURCE

Seeded the federal scheme, Union-State-Concurrent Lists, Governor, judiciary, public service commissions, emergency structure and administrative detail. The proposed federation never operated; residuary powers remained with the Governor-General.

E. WHAT 1950 RETAINED

Parliamentary institutions, cabinet and portfolio logic, federal administration with a strong Centre, Governors, courts, services, legislative lists and institutional continuity from the 1935 framework.

F. WHAT 1950 TRANSFORMED

Universal adult franchise, justiciable Fundamental Rights, republican sovereignty, responsible government, independent elections and joint electorates replaced restricted franchise, official control and communal representation.

G. FIRSTS AND THREE-REFORM MNEMONIC

1773: first GG of Bengal and Supreme Court. 1833: first GG of India. 1858: first Viceroy. 1909 = communal electorate; 1919 = provincial dyarchy; 1935 = provincial autonomy. Never interchange this sequence.

H. UPSC VERDICT

The Constitution is a structural culmination and a political repudiation of colonial rule: it retained the 1935 administrative-federal framework but replaced restricted, communal and bureaucratic government with popular sovereignty, rights and universal franchise.